

Court No. - 39

Case :- WRIT - C No. - 65228 of 2015

Petitioner :- Nehal Singh

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Ashwani Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

Petitioner is permitted to correct the description of the sole petitioner during the course of the day.

Place this petition as fresh on 7 December 2015.

Order Date :- 2.12.2015

NSC

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)

Court No. - 39

Case :- WRIT - C No. - 65228 of 2015

Petitioner :- Raj Kumar

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Ashwani Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

This petition seeks the quashing of the citation issued by the Tehsildar for recovery of certain electricity dues against the grandfather of the petitioner-Nihal Singh who is said to be dead. It is, however, submitted by learned counsel for the petitioner that the petitioner is ready to deposit the amount but would require some time to deposit it in installments. It is also stated by learned counsel for the petitioner that pursuant to the recovery citation steps are being taken to arrest the petitioner.

Sri Shravan Kumar Tripathi, learned counsel appearing for the respondent-Power Corporation has stated that for this purpose the petitioner can move an application before the Executive Engineer concerned under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

We would in such circumstances, direct that in the event the petitioner moves an application before the Executive Engineer concerned within a period of two weeks from today under Clause 6.14 of the Code, an appropriate decision shall be taken expeditiously and preferably within two weeks thereafter. However, for a period of four weeks, no coercive steps shall be taken against the petitioner pursuant to the citation that has been issued.

The writ petition is, accordingly, disposed of with the aforesaid observations.

Order Date :- 22.12.2015

GS

(Mukhtar Ahmad, J.)

(Dilip Gupta, J.)